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File No.: EXP202302632 (PS/00415/2023)

RESOLUTION OF THE SANCTIONING PROCEDURE

From the actions carried out by the Spanish Agency for Data Protection and based on the following:

BACKGROUND

FIRST: On 22/01/23, A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection.

The complaint was directed against the owner of the website <https://www.dmerka.com>, for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 27/04/16, regarding the Protection of Natural Persons in relation to the Processing of Personal Data and the Free Movement of such Data (GDPR) and Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD).

The complainant states in their complaint that the website in question is an e-commerce site where the data controller is NOT identified in the form, nor is information provided about it.

SECOND: On 01/03/23, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

THIRD: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the supervisory authorities in Article 58.1 of the GDPR and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following:

1.- The Data Inspection has carried out the following checks on the website <https://www.dmerka.com>:

- The website offers a service for purchasing products from various supermarket chains (Mercadona, Dia, Carrefour, El Corte Inglés, Lidl, Gladis, and Lupa Lupa). The user selects the products they wish to purchase and adds them to the shopping cart. Once the selection is complete, it allows the user to finalize the purchase and redirects to a screen where personal data is requested. After entering the personal data, it is necessary to accept the "terms and conditions" before finalizing the order. The link "terms and conditions" opens a window titled "privacy and data policy." However, there is no information about the identity of the data controller or representative of the website, or DPO, as well as a lack of information regarding the user's right to file a complaint with the AEPD if they believe their rights regarding their personal data have been violated.

- To address data protection rights, they provide an email address in the privacy policy:

protecciondatos@dmerka.com

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- The homepage informs about the operation of the service and the purchase conditions. It contains a section titled "DATA PROTECTION LAW" with the following text: "At dmerka, we do not collect or store any customer data; therefore, if you place another order, you will have to enter it again as we do not keep any records. If you have any questions about this, do not purchase on this website."

- The data collected to make the purchase are as follows: Name, surname, street, postal code, city, province, phone number, email, delivery date and time, and payment details (credit card number, expiration date, and CVC).

2.- The domain registration service provider has informed at the request of the data inspection that the owner of the domain [dmerka.com](https://www.dmerka.com) is B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), with an address at ***ADDRESS.1. The address matches the tax address reported by the Tax Agency.

3.- On 10/05/23, the respondent was requested via electronic notification to provide the following information and documentation:

- A copy of the Activity Register of the treatments carried out with the data collected on "dmerka.com." Specify the purposes for which each of the data is collected.

- The number of individuals from whom data has been collected and a description of the data collected. Information provided to them regarding the processing of data and their personal data protection rights.
- The guarantees implemented for the adequate protection of the rights and freedoms of individuals.
- A copy of the Risk Analyses (RA) carried out, and the reports prepared by the DPO regarding this, and detailed documentation of the technical and organizational security measures implemented.
- A printed copy of all data held in their files relating to A.A.A.

This request was available at the electronic address and resulted in "expired" without being withdrawn by its recipient.

On 23/05/23, 09/06/23, and 04/08/23, the information request was sent via postal notification, being returned to the sender on the first attempt with the message "Unknown" and on the last two attempts with the messages "Absent" and "Notice left in the mailbox."

FOURTH: On 23/10/23, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against B.B.B. with ***NIF.1, owner of the website <https://www.dmerka.com> in accordance with the provisions of Articles 63 and 64

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of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

In the opening agreement, it was determined that the penalty that could correspond, considering the existing evidence at that time and without prejudice to what resulted from the instruction, would amount to a total of 600 euros (six hundred euros).

Also, regarding the possible measures to be required if the infringement were confirmed, it was indicated that it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of Article 58.2 d) of the GDPR.

Apart from all of this, the summoned party was informed that if they did not make allegations against this initiation agreement within the stipulated period, it could be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The attempt to notify the initiation of the file was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), according to the certificate from the Electronic Notification and Electronic Address Service. This was sent to the summoned party on 23/10/23 through the electronic notification service, "NOTIFIC@", having expired due to lapse, as the deadline for appearance was exceeded on 03/11/23. Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, a copy was sent by postal mail to the address indicated by the Tax Agency as the tax domicile. The initiation document sent to the address ***DIRECCION.1 was returned to the sender due to "Excess" (Not collected at the office) on 07/12/23, with the following associated information: Delivery management by the Unit: 4719194: 1st Delivery attempt on 27/11/23, with the result of "Absent" and 2nd Delivery attempt on 28/11/23 with the result of "Absent" and "Notice left in mailbox."

On 12/03/24, the notification of the initiation agreement was made through an announcement in the Unique Edict Board of the Official State Bulletin, in accordance with Article 44 of the LPACAP. In this announcement, the summoned party is informed about the possibility of obtaining a copy of the opening agreement.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the formulation of allegations had elapsed, it has been confirmed that no allegations have been received in this Agency.

Article 64.2.f) of the LPACAP - a provision of which the summoned party was informed in the opening

agreement of the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the attributed responsibility, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the summoned party, and the sanction that could be imposed.

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impose itself. Therefore, considering that the accused party has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered a proposal for resolution in this case. In light of all that has transpired, the following facts are considered proven by the Spanish Agency for Data Protection in this procedure:

PROVEN FACTS

First: It is recorded that the website <https://www.dmerka.com> offers a service for purchasing products from various supermarket chains, and where, in order to make online purchases, personal identifying data of users such as postal address, phone number, email, and identifying data of the payment card are collected.

Second: It has been verified that there is no information on the website in question regarding the data controller or the user's right to file a complaint with the AEPD.

Third: At the request of this Agency, the domain registration service provider has informed that the owner of the domain "dmeka.com" is Mr. B.B.B.- ***NIF.1.

LEGAL GROUNDS

I.

Competence:

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II.

Administrative Infraction

The lack of information in accordance with current regulations regarding the processing of personal data when obtained from users of the website constitutes a violation of Article 13 of the GDPR, as it establishes that:

"1. When personal data relating to a data subject is obtained from the data subject, the data controller shall provide the data subject, at the time of obtaining the data, with: a) the identity and contact details of the controller and, where applicable, of the representative; b) the contact details of the data protection officer;

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data, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing; d) when the processing is based on Article 6, paragraph 1, letter f), the legitimate interests of the controller or a third party; e) the recipients or categories of recipients of the personal data, where applicable; f) where applicable, the intention of the controller to transfer personal data to a third country or international organization and the existence or absence of an

adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49, paragraph 1, second sentence, reference to the appropriate or suitable safeguards and the means to obtain a copy of these or the fact that they have been provided.

2. In addition to the information mentioned in paragraph 1, the controller shall provide the data subject, at the time when the personal data are obtained, with the following information necessary to ensure fair and transparent data processing: a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period; b) the existence of the right to request from the controller access to personal data concerning the data subject, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability; c) when the processing is based on Article 6, paragraph 1, letter a), or Article 9, paragraph 2, letter a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on consent before its withdrawal; d) the right to lodge a complaint with a supervisory authority; e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the data subject is obliged to provide the personal data and is informed of the possible consequences of not providing such data; f) the existence of automated decisions, including profiling, referred to in Article 22, paragraphs 1 and 4, and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the data subject.”

III.

Sanction.

This infringement may be sanctioned with a fine of up to €20,000,000 or, in the case of a company, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount, in accordance with Article 83.5.b) of the GDPR.

In this regard, Article 74.a) of the LOPDGDD, concerning infringements considered minor for the purposes of limitation, states that:

Minor infringements shall be considered and shall be subject to a one-year limitation period for the remaining formal infringements of the articles mentioned in paragraphs 4 and 5 of Article 83 of Regulation (EU) 2016/679 and, in particular, the following: a) The failure to comply with the principle of transparency of information or the right to information of the affected party by not providing all the information required by Articles 13 and 14 of Regulation (EU) 2016/679.

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The balance of the circumstances considered in Articles 83.2 of the GDPR and 76.2 of the LOPDGDD, with respect to the infringement committed by violating the provisions of Article 13 of the GDPR, allows for the imposition of a fine of €600 (six hundred euros).

IV.

Measures

Article 58.2 of the GDPR establishes the corrective powers available to a supervisory authority, and paragraph d) of the cited provision states that it may consist of “ordering the controller or processor to ensure that the processing operations are in compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified timeframe.”

Therefore, it is appropriate to impose the corrective measure described in Article 58.2.d) of the GDPR and order the respondent to establish, within one month, the technical measures on the website it owns, including a “Privacy Policy” that informs users providing their personal data about the management of such data, as specified in Article 13 of the GDPR.

In accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Data Protection Agency **RESOLVES:**

FIRST: TO IMPOSE on Mr. B.B.B. with NIF: ***NIF.1, owner of the website, <https://www.dmerka.com>, for the infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €600

(six hundred euros).

SECOND: TO ORDER Mr. B.B.B. to implement, within one month, the necessary corrective measures to adapt the website it owns to the personal data protection regulations, based on the provisions of Article 13 of the GDPR, as well as to inform this Agency within the same timeframe about the measures adopted.

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

FOURTH: To warn the sanctioned party that the imposed fine must be paid once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, within the voluntary payment period indicated in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by depositing it into the restricted account No. ES00 0000 0000 0000 0000 0000, opened in the name of the Spanish Data Protection Agency at the banking entity CAIXABANK, S.A., or otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once it is enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure (Article 48.6 of the LOPDGDD), and in accordance with the provisions of Articles 112 and 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may optionally file a motion for reconsideration with the Director of the Spanish Data Protection Agency within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned legal text.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Data Protection Agency, submitting it through the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1.

They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Director of the Spanish Data Protection Agency.

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